

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-30

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

FIRST JOINT MOTION TO EXTEND DEADLINES

COME NOW the parties, Complainant Nielsen & Bainbridge, LLC (“Complainant” or “NBG”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Joint Motion to Extend Deadlines (“Motion”) and respectfully request a 60-day extension of the remaining deadlines set forth in the Presiding Officer’s January 26, 2026 Scheduling Order to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

I. The Current Schedule

On January 26, 2026, the Presiding Officer entered a Scheduling Order with the following deadlines relevant to this Motion:

EVENT	CURRENT DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	April 10, 2026
Substantial completion of production of documents and ESI pursuant to initial requests	April 10, 2026
Parties file Joint Status Report 2 regarding status of discovery	April 17, 2026
Complete depositions of fact witnesses	May 11, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	May 11, 2026
Disclosure of initial expert reports, if any	May 21, 2026
Disclosure of rebuttal expert reports, if any	June 1, 2026
Complete expert depositions	June 12, 2026
Close of discovery	June 12, 2026
Complainant's Brief, proposed findings of fact, appendix due	July 9, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	August 6, 2026
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	August 20, 2026

The Parties submit the below as good cause for an additional 60-day (plus slight modifications to accommodate deadlines falling over weekends) extension of each of the respective dates at issue:

The Parties have worked together to make significant steps in the discovery process in the present matter, beginning with serving their initial requests for production of documents and interrogatories (the "Discovery Requests") on February 9, 2026. The Parties submitted objections and responses to the Discovery Requests on March 11, 2026. With the initial Discovery Requests and the corresponding objections and responses exchanged, the Parties negotiated and executed an ESI Protocol containing negotiated search terms on March 26, 2026. The parties worked together to finalize a proposed Protective Order, filed on March 26, 2026, which was approved with modifications on March 27, 2026.

Complainant has worked diligently with the appropriate parties to make sure it is ready to make productions to Respondent. Following the exchange of Discovery Requests, Complainant has worked with its data vendors, AlixPartners and KPMG, to ensure that documents are ready for further collection, review, and production to Respondent. Complainant has met with its vendors on multiple occasions to discuss the ESI Protocol, the collection and ingestion of additional electronic documents and data, searches of relevant data, and review, and has also identified additional custodians and electronic data sources with potentially relevant data. Complainant completed search and review protocols on the approximately 3.4 million documents collected from selected custodians and electronic files. Particularly due to Respondent's name ONE being a homograph with the common English word and number "one", the search and review protocols initially hit on over 2.6 million documents, requiring substantial efforts to review and eliminate non-responsive documents. Complainant has submitted its initial production of approximately 25,000 documents for processing to its eDiscovery vendor and anticipate production to Respondent on April 6, 2026.

Respondent has also worked with its data vendor to ensure that documents are ready for collection, review, and production to Complainant. Respondent has met with its vendor on multiple occasions to discuss the ESI Protocol, the collection and ingestion of additional electronic documents and data, searches of relevant data, and review of this data for production. Respondent completed an initial search to identify approximately 1.4 million potentially responsive documents collected from selected custodians and electronic files. Notwithstanding its continuing efforts, Respondent does not anticipate being able to begin production on a rolling basis prior to the week of May 4, 2026.

Although the Parties have progressed in their document collection and plan to begin or continue their rolling productions, the millions of documents held between Complainant and Respondent, as well as much of Respondent's information being located overseas, make it impossible to ensure that substantial completion of document (including ESI) production can be completed by the current April 10, 2026 deadline.

Once those productions begin, the Parties will still need the time to review the voluminous batches of document productions and prepare to take depositions. Simply stated, this request is based on the pace of the Parties' productions and review even when using all resources and all good faith efforts. To address it in any workable manner, using all reasonable efforts, the Parties respectfully submit that the request made herein be granted.

II. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's April 10, 2026 deadline for substantial completion of document (including ESI) production but the volume of the documentation prevents both Parties from meeting the current deadline.

As part of its document and data collection process, Complainant is working with its vendors to collect documents from 31 custodians as well as network share drives and other sources of data. Respondent has also been working closely with their e-discovery partners to expedite this process and have made significant progress but the number of custodians, even when winnowed down by relevancy and responsiveness is expected at the end of the process to still be in the hundreds of thousands of documents. From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a

meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the January 26, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the expected size of the responsive documentation has made it clear to the Parties that even with all their best efforts, they will not be able to complete production and review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately prepare for and take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have served written discovery requests, including interrogatories and requests for production, and have provided objections and responses to such requests. Ahead of the April

10, 2026 deadline, the Parties intend to discuss, or to meet and confer, as needed, regarding these requests and responses to ensure there are no currently outstanding disputes. The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding Officer with timely updates, the Parties propose keeping the April 17, 2026 deadline for the second Joint Status Report and adding a third Joint Status Report for June 17, 2026.

The Parties are aware of the prior Order of this tribunal and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case

against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

III. Conclusion

Given that the Parties are still working diligently to review and produce documents, the Parties respectfully submit that an extension of the remaining deadlines in the Presiding Officer's January 26, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and produce documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The Parties

will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

The Parties therefore jointly request the following amended schedule, which (accounting for weekends) moves 60 days from the deadline of the January 26, 2026 Scheduling Order for substantial completion of document (including ESI) production:

EVENT	PROPOSED DEADLINE
Parties file Joint Status Report 2 regarding status of discovery	April 17, 2026
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	June 9, 2026
Substantial completion of production of documents and ESI pursuant to initial requests	June 9, 2026
Parties file Joint Status Report 3 regarding status of discovery	June 17, 2026
Complete depositions of fact witnesses	July 10, 2026
Last day to serve interrogatories, requests for admission, and requests for production of documents	July 10, 2026
Disclosure of initial expert reports, if any	July 22, 2026
Disclosure of rebuttal expert reports, if any	July 31, 2026
Complete expert depositions	August 12, 2026
Close of discovery	August 12, 2026
Complainant's Brief, proposed findings of fact, appendix due	September 9, 2026
Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due	October 8, 2026
Complainant's Reply Brief, response to Respondent's proposed findings of fact due	October 21, 2026

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this Motion.

WHEREFORE, the Parties jointly pray that their First Joint Motion to Extend Deadlines be granted.

Dated: April 3, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

MONTGOMERY MCCracken WALKER &
RHOADS LLP

/s/ Gregory A. Crapanzano

/s/ Timothy Semenoro (with permission)

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
Gregory A. Crapanzano II
(917) 575-3440
gcrapanzano@huthreynolds.com
Mohini P.B. Rarrick
(818) 235-9753
mpriya@huthreynolds.com
Jack Mitchell
(845) 803-3655
jmittchell@huthreynolds.com
41 Cannon Court
Huntington, NY 11743

Timothy Semenoro
Wook Chung
Robert O'Connor
Kaspar Kielland
Matteo Bonuzzi
437 Madison Avenue, 24th Floor
New York, New York 10022
Tel: 212 867 9500
tsemenoro@mmwr.com
wchung@mmwr.com
roconnor@mmwr.com
kkielland@mmwr.com
mbonuzzi@mmwr.com

*Counsel for Respondent Ocean Network Express
Pte. Ltd.*

*Counsel for Complainant Nielsen &
Bainbridge, LLC*